

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Johnnie Pabon, :: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Detective Ezequiel Martinez, Shield 029845 of :
NARCBBX, Detective Nelson Nin, Shield 5300 of :
NARCBBX, Undercover Police Officer John Doe and :
and New York City Police Officers John Doe, :

Defendants :

Plaintiff's residence is:
2780 Sampson Avenue
Bronx, NY 10465

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Plaintiff designates Bronx County as venue of trial.

Dated: January 27, 2022
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Detective Ezequiel Martinez, Shield 029845 of NARCB BX

Detective Nelson Nin, Shield 5300 of NARCB BX

Undercover Police Officer John Doe

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Johnnie Pabon,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Detective Ezequiel Martinez, Shield 029845 of	:	
NARCB BX, Detective Nelson Nin, Shield 5300 of	:	
NARCB BX, Undercover Police Officer John Doe and	:	
and New York City Police Officers John Doe,	:	
	:	
Defendants	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Johnnie Pabon (hereinafter referred to as “PABON”) resides in Bronx, State of New York.
2. That at all times hereinafter mentioned, Detective Ezequiel Martinez, Shield 029845 of NARCB BX, (hereinafter referred to as “MARTINEZ”) was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Nelson Nin, Shield 5300 of NARCB BX, (hereinafter referred to as “NIN”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Undercover Police Officer John Doe (hereinafter referred to as “UC DOE”) was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the arrest of Plaintiff (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

8. On or before about September 21, 2020 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

9. That on or about October 4, 2021, a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff’s claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

10. That on or about September 11, 2020 at approximately 9:00PM in the vicinity of 152 Street and Wales Avenue, Bronx, NY Plaintiff was on his way to a store to purchase Ben and Jerry’s ice cream when he was stopped, thrown to the ground and assaulted by MARTINEZ, NIN and DOES in that that MARTINEZ, NIN and DOES struck Plaintiff about by punching and kicking him in his face, head body, back, arms and legs.

11. That as a result of being struck by MARTINEZ, NIN and DOES, Plaintiff experienced substantial pain to his face, head, body, back, arms and legs wherein he later received treatment at a local Bronx hospital.

12. That after MARTINEZ, NIN and DOES attacked Plaintiff and physically assaulted him, they handcuffed him and arrested him.

13. That at no time had Plaintiff engaged in any criminal or unlawful conduct.

14. That at no time did Plaintiff sell or attempt to sell a controlled substance.

15. That at no time did Plaintiff possess or exercise custody and control over a controlled substance.

16. That at not ime did Plaintiff possess or exercise custody and control over any marijuana.

17. That UC DOE and NIN knew that Plaintiff had not engaged in any criminal conduct and permitted Plaintiff to be arrested anyway.

18. That after Plaintiff was arrested he was transported to a local Bronx police precinct.

19. That while Plaintiff was at the local Bronx police precinct, he was subjected to a strip search wherein in DOES touched him about his unclothed body and that nothing of an illegal or unlawful nature was recovered.

20. That as a result of the strip search, Plaintiff later received treatment at a local Bronx hospital for pain he sustained during the search.

21. That while at said local Bronx police precinct he was placed into a cell and held with numerous other male prisoners for several hours.

22. That while at the local Bronx police precinct, Plaintiff was denied access to medical attention and could only get access to medical attention after he was released form custody.

23. That after being held for several hours at the local Bronx police precinct, Plaintiff was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.

24. That on or about September 13, 2020 Plaintiff was arraigned in Bronx County Criminal Court on docket CR-012807-20BX, charging him Criminal Sale of a Controlled Substance, Criminal Possession of a Controlled Substance and Unlawful Possession of Marijuana.

25. That at the time of his arraignment, Plaintiff was released and ordered to return to court on another day.

26. That on and between September 13, 2020 and September 14, 2021 Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

29. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

30. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

31. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

32. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

33. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.

34. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. The intentional verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

37. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

42. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. At all times pertinent hereto, MARTINEZ, NIN, UC DOE and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

45. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that MARTINEZ, NIN, UC DOE and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

46. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

47. The City of New York and New York City Police Department's failure to provide adequate training and supervision to MARTINEZ, NIN, UC DOE and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

48. That the City of New York and New York City Police Department were aware that MARTINEZ had two (2) prior Civilian Complaint Review Board complaints against Martinez and despite such, they continued to employ MARTINEZ.

49. That the City of New York and New York City Police Department were aware that MARTINEZ was sued in connection with civil rights violations in the case of Kevin Hill v. City

of New York et al, under index number 13CV01145 in the Southern District of the United States and despite such, they continued to employ MARTINEZ.

50. That the City of New York and New York City Police Department were aware that MARTINEZ was sued in connection with civil rights violations in the case of Luis Tiburcio v. City of New York et al, under index number 303264/2014, in Supreme Court, Bronx County and despite such, they continued to employ MARTINEZ.

51. That the City of New York and New York City Police Department were aware that MARTINEZ was sued in connection with civil rights violations in the case of Andy Millan, v. City of New York et al, under index 021312/2018E, Supreme Court, Bronx County and despite such, they continued to employ MARTINEZ.

52. That the City of New York and New York City Police Department were aware that NIN had twenty seven (27) prior Civilian Complaint Review Board complaints against NIN, two (2) of which were substantiated and despite such, they continued to employ NIN.

53. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Warnell Carroll v. City of New York et al, under index 023222/2016E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

54. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Kristen Alaimo v. City of New York et al, under index 303031/2016E, Supreme Court, Bronx County and despite such, they continued to employ NIN. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Miguel

Carrero v. City of New York, under index 16CV08566, District Court, Southern District United States and despite such, they continued to employ NIN.

55. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Carlos Rivera v. City of New York, under index 303927/2016, Supreme Court, Bronx County and despite such, they continued to employ NIN.

56. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Sandra Smalls v. City of New York et al, under index 024210/2017E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

57. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Ellion Wright v. City of New York et al, under index 021384/2017E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

58. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Reginald Wilson, v. City of New York et al, under index 028337/2018E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

59. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Luis Sierra v. City of New York et al, under index 032230/2018E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

60. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Minerva Cancel v. City of New York et al, under index 026487/2019E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

61. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Yajaira Saavedra v. City of New York et al, under index 19CV07491, District Court, Southern District, United States and despite such, they continued to employ NIN.

62. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Pedro Cruz v. City of New York et al, under index 033435/2019E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

63. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Tyrone Roberson v. City of New York et al, under index 020760/2020E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

64. That the City of New York and New York City Police Department were aware that NIN was sued in connection with civil rights violations in the case of Papa Ousenyou v. City of New York, et al, under index 027933/2020E, Supreme Court, Bronx County and despite such, they continued to employ NIN.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

65. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64, as if more fully stated herein at length.

66. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

67. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: January 27, 2022

Jason Steinberger
Jason A. Steinberger